

Staff Report

Community Development

Final Plat: **Lee Mill Heights, Unit Thirteen**

File no. SUB-22-075

To: Manhattan Urban Area Planning Board

From: Barry Beagle, AICP, Senior Planner

Meeting Date: November 7, 2022

Applicant/Owner: Keven D. and Beth M. Neitzel

Consultant: Schwab-Eaton, Dan Manly

Property Location: 1113 Lesmer Court

Total Area: 1.97 acres

Zoning: RL/O-A, Low-Density Residential District with Airport Overlay

Neighboring Zoning: north: RL/O-A south: RL/O-A
east: RL/O-A west: RL/O-A



Fig. 1: Vicinity Map

BACKGROUND

The subject property is currently platted as Lots 4 and 5, Lee Mill Heights, Unit Four. Unit Four was final platted in 2007 consisting of 104 single-family residential lots. The applicants acquired Lot 5 in 2013 and built a single-story residence on property the same year. In 2021, the applicants acquire Lot 4, to which adjacent, with the intent of building an addition to their home.

Project History

May 21, 2007	MUAPB holds public hearing and considers annexation, rezoning and Preliminary Plat of Lee Mill Heights Addition Unit Four. MUAPB recommends approval of annexation and rezonings (R-1/AO, R-3/AO and R-3), and approves Preliminary Plat with conditions.
June 19, 2007	City Commission approves first reading of ordinances annexing and rezoning Lee Mill Heights, Unit Four.
July 3, 2007	City Commission approves Ordinance No. 6629 and 6630 annexing and rezoning Lee Mill Heights, Unit Four.
July 16, 2007	MUAPB approves the Final Plat of Lee Mill Heights Addition, Unit Four, on a vote of 5-0.
October 16, 2007	City Commission accepts the easements and rights-of-ways as shown on the Final Plat of Lee Mill Heights Addition, Unit Four.
February 23, 2012	MUAPB holds public hearing approves the Preliminary Plat of Lee Mill Heights Addition Unit Eight, which consists of Lots 1 and 24, Lee Mill Heights, Unit Four.
April 16, 2012	MUAPB approves the Final Plat of Lee Mill Heights Addition, Unit Eight, on a vote of 5-0.
May 1, 2012	City Commission accepts the easements and rights-of-ways as shown on the Final Plat of Lee Mill Heights Addition, Unit Eight.

PROJECT DESCRIPTION

The Final Plat of Lee Mill Heights, Unit Thirteen is sought to combine Lots 4 and 5, Lee Mill Heights, Unit Four into a single lot and vacate a rededicate a new alignment of a 20-foot wide drainage and utility easement that straddles the common lot line between Lots 4 and 5. The applicant seeks to replat to accommodate construction of an addition on to the east side of their house. The addition cannot be accomplished without realigning an 8-inch sanitary sewer that extends through the 20-foot wide drainage and utility easement. The replat vacates the existing alignment of the 20-foot easement and dedicates a new alignment to the east that will allow for the proposed addition.

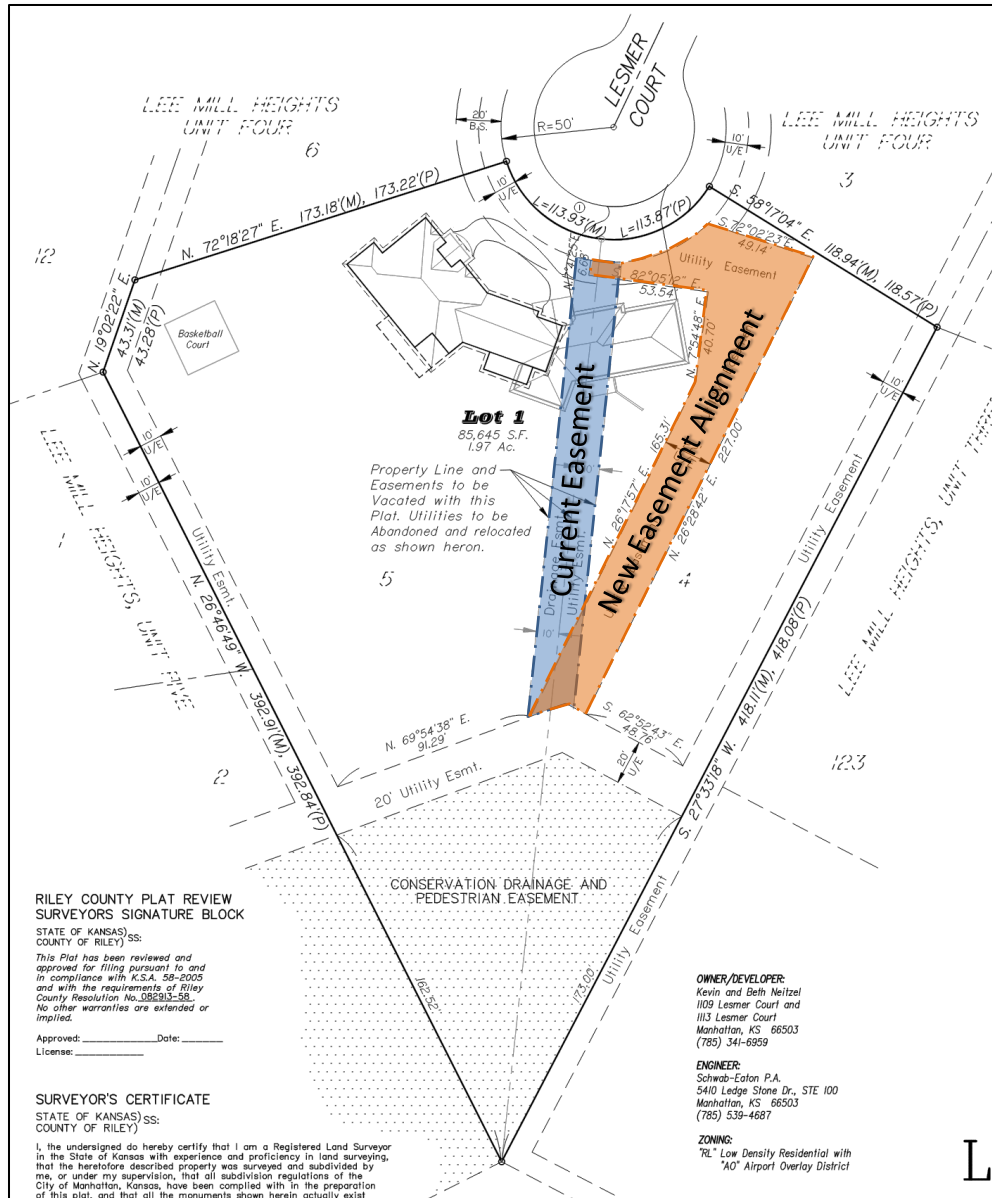


Fig. 2: Lee Mill Heights, Unit 13 – New Easement Alignment

CONSIDERATION OF THE FINAL PLAT

In accordance with Sec. 26-9C-2F of the Manhattan Development Code, the Planning Board will approve the final plat if it is in substantial conformance with the approved preliminary plat, including all conditions or requirements of the Planning Board, and the final plat complies with all requirements of Article 26-5, *Subdivision Standards*, in effect as of the date of final approval.

The Manhattan Urban Area Planning Board approved the Preliminary Plat of Lee Mill Heights Phase Two on May 21, 2007, with the following conditions of approval:

1. Street names on the Final Plat shall not conflict with existing street names or street names, which have a similar sound, based on Section 10-204(A) and (B). *With the final plat of Lee Mill Heights, Unit Four, street names were revised and accepted by Emergency Service providers.*
2. Fire hydrant placement in proposed Christina Circle shall be provided subject to placement requirements of the Manhattan Fire Department based on Section 10-107. *Christina Circle was renamed Lochenshire Circle with the final plat of Unit Four. Fire hydrant placement was reviewed and approved by the Fire Department at that time.*
3. Prior to submittal of the Final Plat, a determination shall be made by the Corp of Engineers regarding the proposed wetland on Lots 60 and 124 based on Section 10-107(H). *This provision is not applicable to Lots 4 and 5 under consideration.*
4. Final design of the Travel Easement shall be subject to approval by the Public Works Department based on Section 10-206. *This condition did not apply to the lots in Unit Four.*
5. Maintenance responsibilities of the Travel Easement shall be subject to approval by the Public Works Department based on Section 10-206. *This condition did not apply to the lots in Unit Four.*
6. Prior to submission of the Final Plat, the applicant and Parks and Recreation Department shall determine if provision of a pedestrian easement is necessary along the southern portions of any of Lots 4, 5, 14 and 15, to accommodate the extension of the proposed Military Trail pedestrian route. *With the final plat of Unit Four, Parks and Recreation staff and the applicant met and agreed to add a pedestrian easement along the southern parts of the Lots 4, 5, 14 and 15, which was shown as a conservation, drainage/pedestrian easement. This easement continues to be shown on the replat of Lee Mill Heights, Unit Thirteen.*

The Final Plat of Lee Mill Heights, Unit Thirteen conforms to all conditions of approval associated with the Preliminary Plat. The Final Plat otherwise complies with the applicable requirements of Article 26-5, Subdivision Standards.

ALTERNATIVES

The MUAPB has the following alternatives concerning the issue at hand. The Board may:

1. **Approve** the Final Plat of Lee Mill Heights, Unit Thirteen, based on conformance with the Manhattan Development Code.
2. **Deny** the Final Plat of Lee Mill Heights, Unit Thirteen, indicating specifically how the final plat does not comply with the Manhattan Development Code.

3. **Table** the Final Plat of Lee Mill Heights, Unit Thirteen, to a specific date, indicating the reasons for tabling.

RECOMMENDATION

City Administration recommends **approval** of the Final Plat of Lee Mill Heights, Unit Thirteen, based on conformance with applicable provisions of the Manhattan Development Code.

POSSIBLE MOTION

Approve the Final Plat of Lee Mill Heights, Unit Thirteen, based on conformance with applicable provision of the Manhattan Development Code, as recommended in the staff report.

Dated: October 26, 2022

Attachments

1. Final Plat of Lee Mill Heights, Unit Thirteen.

